Mississippi Black Codes

Mississippi Legislature · November 1865

Source: Mississippi Black Codes (Nov. 1865), text via Teaching American History. Public domain.

In late 1865, southern legislatures — operating under Andrew Johnson's lenient Reconstruction plan — passed 'Black Codes' that aimed to re-impose a system of unfree Black labor in the aftermath of emancipation. Mississippi's were among the harshest. They criminalized unemployment ('vagrancy'), restricted Black property rights, and apprenticed Black children to former enslavers. Northern outrage over the Black Codes helped fuel the shift to Radical Reconstruction in 1866–67.

Connect: Mississippi's 1865 Black Codes are the reason the 14th Amendment (Class 26) needed to be written. Point to ONE specific Black Code provision that the 14th Amendment invalidated.

Key Passages

Vagrancy Law

all freedmen, free Negroes, and mulattoes in this state over the age of eighteen years found . . . with no lawful employment or business, or found unlawfully assembling themselves together … shall be deemed vagrants; and, on conviction thereof, shall be fined in the sum of not exceeding, in the case of a freedman, free Negro, or mulatto, fifty dollars, and a white man, two hundred dollars, and imprisoned at the discretion of the court, the free Negro not exceeding ten days, and the white man not exceeding six months.

Apprentice Law

it shall be the duty of said Probate Court to order the clerk of said court to apprentice said minors to some competent and suitable person, on such terms as the court may direct … Provided, that the former owner of said minors shall have the preference when, in the opinion of the court, he or she shall be a suitable person for that purpose.

Civil Rights Law — labor contracts

every civil officer shall, and every person may, arrest and carry back to his or her legal employer any freedman, free Negro, or mulatto who shall have quit the service of his or her employer before the expiration of his or her term of service without good cause, and said officer and person shall be entitled to receive for arresting and carrying back every deserting employee aforesaid the sum of five dollars

HIPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	Immediately after the Civil War (1865), with the 13th Amendment ending slavery and Southern governments operating under Johnson's lenient plan.
Intended Audience *Who was the source written for?*	White Mississippians, especially planters, law officers, and courts, along with freedpeople who would be bound by the laws.

HIPP Element	Your Analysis
Point of View *Whose perspective? Whose is missing?*	The all-white Mississippi legislature, made up of former Confederates and planters who wanted to restore control over Black labor; freedpeople had no say.
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. LEQ Historical Reasoning — CCOT (1 pt): Write a thesis on what changed and what stayed the same in Southern labor relations between 1860 and 1866.
2. Identify TWO specific provisions of these codes that recreated features of slavery.
3. Why did the Black Codes radicalize Northern Republicans in 1866?